

25NWCV02811 25NWCV02811

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-31

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Case Number: 25NWCV02811 Hearing Date: August 31, 2026 Dept: D

KAUSHIKKUMAR P. PATEL, ET

AL. V. TOYOTA MOTOR SALES, U.S.A, INC.

CASE NO.: 25NWCV02811

HEARING: 08/31/26 @ 9:30 a.m.

#12

TENTATIVE ORDER

Defendant Toyota's Motion to

Compel Deposition of Plaintiff Kaushikkumar P. Patel is GRANTED. Plaintiff Patel is ordered to appear for deposition within 30 days. Plaintiff

Patel and his counsel of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.

Defendant Toyota's Motion to

Compel Deposition of Plaintiff Shiva Corporation is GRANTED. Plaintiff Shiva is ordered to appear for deposition within 30 days. Plaintiff

Patel and his counsel of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.

Moving party(s) to give notice.

Defendant Toyota Motor Sales,

U.S.A., Inc. moves to compel the depositions of Plaintiffs Kaushikkumar P.

Patel ("Patel") and Shiva Corporation ("Shiva") pursuant to Code of Civil

Procedure sections 2025.450 subdivision (a) and 2025.480 subdivision (a) based on two separate motions.

Background

Song Beverly Warranty Act

action. Plaintiffs filed a complaint on

August 5, 2025 against Toyota Motor Sales, U.S.A., Inc. ("Toyota") alleging (1) violation of Song Beverly Act – Breach of Express Warranty; (2) violation of Song Beverly Act – Breach of Implied Warranty; (3) violation of the Song Beverly Act Section 1793.2.

Plaintiffs purchased a 2022 Lexus

on June 10, 2022 subject to a warranty issued by Defendant Toyota. Plaintiffs presented the vehicle for repairs in February 2025, March 2025, April 2025 and May 2025 for an abnormal noise in the engine and exhaust area. Plaintiffs revoked acceptance of the sales contract.

On June 8, 2026, Defendant Toyota

filed a Motion to Compel Deposition of Plaintiff Patel and a Motion to Compel Deposition of Shiva. No oppositions or replies have been filed as of August 26, 2026.

Legal Standard

"If, after service of a

deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code of Civ. Proc., §2025.450, subd. (a).)

"A motion under subdivision (a)

shall comply with both of the following: (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in

the deposition notice. (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code of Civ. Proc., §2025.450, subd. (b).)

Meet and Confer

Plaintiff

Patel

Defendant

Toyota served Plaintiff Patel with a deposition notice on November 18, 2025 for deposition on December 5, 2025. (Memo of Points and Authorities ISO of Motion to Compel Patel Depo., Miner Dec., ¶2.) Plaintiff Patel served objections to the deposition on November 28, 2025 and indicated that he would not attend the deposition because it was unilaterally set by Defendant. (Id. at ¶3.) Defendant thereafter made multiple requests for available deposition dates. (Id. at ¶¶4-6.) Plaintiff did not respond to any of these requests. (Id.)

Defendant

served Plaintiff Patel with a First Amended Deposition Notice on May 4, 2026 for deposition on May 21, 2026. (Id. at ¶7.) Plaintiff again objected on grounds that the deposition was unilaterally set and refused to attend. (Id. at ¶8.) Defendant requested available dates for deposition and Plaintiff again did not respond. (Id. at ¶9.)

Defendant

satisfies the meet and confer requirement of Code of Civil Procedure section 2025.450 subdivision (b)(2) as to Plaintiff Patel. Defendant contacted Plaintiff regarding his non-appearance and requested available dates.

Defendant

also satisfies the good cause requirement under Code of Civil Procedure section 2025.450 subdivision (b)(1) as to the 46 Requests for Production set forth in the Notice of Deposition. Defendant explains

that the documents are directly relevant to Plaintiffs' claims and are necessary to evaluate Plaintiffs' allegations and damages. (Id. at 2:7-13.)

Plaintiff

Shiva

Defendant

served Plaintiff Shiva with a deposition notice on May 4, 2025 for deposition on May 21, 2026. (Memo of Points and Authorities ISO Motion to Compel Shiva Depo., Miner Dec., ¶6.) Plaintiff Shiva objected to the deposition on May 14, 2026 on grounds that the deposition date was set unilaterally. (Id. at ¶7.) Defendant responded with a request for available dates on May 29, 2026. (Id.) Plaintiff Shiva failed to respond.

Defendant

satisfies the meet and confer requirement of Code of Civil Procedure section 2025.450 subdivision (b)(2) as to Plaintiff Shiva. Defendant contacted Plaintiff regarding his non-appearance and requested available dates.

Defendant

also satisfies the good cause requirement under Code of Civil Procedure section 2025.450 subdivision (b)(1) as to the 46 Requests for Production set forth in the Notice of Deposition. Defendant explains that the documents are directly relevant to Plaintiffs' claims and are necessary to evaluate Plaintiffs' allegations and damages. (Id. at 2:7-13.)

Procedural Issues

Defendant

cites to both sections 2025.450 and 2025.480. The applicable section is section 2025.450, because no deposition took place, no objections were made to the form of the deposition notices pursuant to section 2025.410 and Defendant is not moving to compel responses to particular questions that Plaintiffs refused to answer at deposition.

Analysis

Plaintiffs

Patel and Shiva failed to appear at a properly noticed deposition. Plaintiffs have also refused to provide available dates for deposition despite Defendant's request for such dates and Plaintiffs' objection that the original depositions were unilaterally set. Defendant's Motions to Compel Depositions of

Plaintiffs Patel and Shiva are granted pursuant to Code of Civil Procedure section 2025.450 subdivision (a). Plaintiffs are ordered to appear for deposition within 30 days of this order.

Defendant

is also entitled to monetary sanctions pursuant to Code of Civil Procedure section 2025.450 subdivision (g)(1), "[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendant

requests sanctions against Plaintiff Patel and his counsel in the amount of \$1,245.00 based on 2 hours motion preparation and 1 hour opposition review, reply preparation and hearing attendance at \$395.00/hr and a \$60.00 filing fee. Defendant also requests \$1,245.00 in sanctions for the motion to compel deposition of Shiva based on the same time expenditures set forth in the Patel Motion to Compel. The Court finds the moving papers are largely duplicative. For example, the Memorandum filed as to the Patel motion is virtually identical to the Memorandum filed as to the Shiva motion. The Court finds similar duplicative work in the remaining moving papers. Additionally, no opposition was filed. The Court reduces the number of hours to those reasonably attributable to the moving papers reviewed and compared by the Court.

As to each motion, the Court awards \$395.00 in sanctions based on 1.0 hour of motion preparation and hearing time and a \$60 filing fee.

Plaintiff Patel and his counsel

of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.

Plaintiff Shiva and its counsel

of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.

Conclusion

Defendant

Toyota's Motion to Compel Deposition of Plaintiff Kaushikkumar P. Patel is GRANTED. Plaintiff Patel is ordered to appear for deposition within 30 days. Plaintiff Patel and his counsel of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.

Defendant

Toyota's Motion to Compel Deposition of Plaintiff Shiva Corporation is GRANTED. Plaintiff Shiva is ordered to appear for deposition within 30 days. Plaintiff Patel and his counsel of record, Quill & Arrow, LLP, are ordered to pay \$455.00 within 20 days.